

**FIRST INFORMATION REPORT
(U/s 173 B.N.S.S.)**

Book No. **1428**

Serial No. **015**

1. District: PS: Year: FIR No.: Date:
New Delhi CBI/ACB/New Delhi 2024 RC0032024A0043 07.11.2024

2. (1) Act - Bhartiya Nyay Sanhita, 2023 Sections: 61(2)

(2) Act - PC Act 1988 Sections: 7A
(as amended in 2018)

(3) Act - Sections:

(4) Other Acts & Sections-

3. (a) Suspected Offence- **Criminal Conspiracy & Taking undue
advantage to influence public servant by corrupt
or illegal means or by exercise of personal influence.**

(b) Day: Date: Time:

(c) Information received at PS: **CBI, ACB, New Delhi** Dated: **04.11.2024**

Entry No. **7** Date: **07.11.2024** Time: **7:00 A.M.**

4. Type of information – (Written / Oral): **Written**

5. Place of occurrence **Delhi**

(a) Direction & Distance from

Beat No. -

(b) Address:

(c) In case, outside the limit of this Police Station, then

Name of PS - District -

6. Complainant / Informant: credible source information

(a) Name : Shri Karan Gupta

(b) Father's/Husband's Name : Sh. Rajinder Kumar Gupta

(c) Date of Birth :

(d) Nationality : Indian

(e) Passport No. **NA** Date of Issue **NA** - Place of issue **NA**

(f) Profession : **Private Person**

(g) Address : **The Amaryllis, Gate no. 3, Tower 9A-605, Karol Bagh, New Delhi**

7. Details of known/suspected/unknown accused with full particulars: -
(Attached separate sheet, if necessary)

1. **Shri Vijay Maggo, Legal Officer, DUSIB, GNCTD.**

2. **Shri Satish, Private Person.**

3. **Other Unknown others**

8. Reasons for delay in reporting by the complainant/informant: -

No delay

9. Particulars of properties Stolen (Attach separate sheet, if necessary):

10. Total value of property stolen: -

11. Inquest Report/U.D. Case No., if any,: -

12. First information contents (Attach separate sheet, if required):

A written complaint dated 04.11.2024 has been received from Sh. Karan Gupta S/o Shri Rajinder Kumar Gupta R/o The Amaryllis, Gate no. 3, Tower 9A-605, Karol Bagh, New Delhi in CBI Office and the same is enclosed herewith. The Complaint and subsequent verification report dated 04.11.2024, 05.11.2024 & 06.11.2024 which are enclosed herewith prima facie discloses commission of offences punishable U/s 61(2) of Bhartiya Nyay Sanhita 2023 r/w Section 7 A of PC Act 1988 (as amended in 2018) on the part of (1) Sh. Vijay Maggo, Legal Officer, DUSIB, GNCTD, (2) Sh. Satish, Private Person & (3) Other unknown persons.

Therefore, a regular case U/s 61(2) of Bhartiya Nyay Sanhita 2023 r/w Section 7A of PC Act 1988 (as amended in 2018) is registered against (1) Sh. Vijay Maggo, Legal Officer, DUSIB, GNCTD, (2) Sh. Satish, Private Person & (3) Other unknown persons and entrusted to Sh. Mahender, Singh, Inspector, CBI, ACB, New Delhi for investigation.

To

The Supdt. of Police
Central Bureau of Investigation,
Anti Corruption Branch
Delhi.

Subject:- Demand of bribe by Sh. Vijay Maggo, Legal Officer of DUSIB and Shri P.K.Jha, Principal Director, DUSIB.

Dear Sir

I, Karan Gupta, S/o Sh. Rajinder Kumar Gupta, R/o The Amaryllis, Gate No. 3, Tower 9A-605, Karol Bagh, New Delhi. I would like to draw your kind attention towards the bribe demanded by the above legal officer of Delhi Urban Shelter Improvement Board (DUSIB), IP Estate, New Delhi in connivance with Shri P.K.Jha, Principal Director, DUSIB for de-sealing of my shop of M/s Ministry of Cakes (Proprietor Mrs. Priya Varshney W/o Shri Karan Gupta) and M/s Shree Sanwariya Sweets (proprietor Shri Karan Gupta), situated at 8756-57, Multani Dhanda, Pahar Ganj, New Delhi-55. Both these shops are being run by me. Both the shop were sealed by DUSIB on 07/07/23 for unauthorized constructions in the shops.

Mr. Vijay Maggo, Legal Officer, DUSIB called me on 01/11/24 and told ~~said~~ if I pay him bribe of Rs. 40 lakhs (forty lakhs) then he will facilitate the opening of my shops without providing any document for their release and will allow unhindered operation of both my shops and assured me that no one will come for the checking, if someone comes for the checking or if any complaint is received then we will re seal the store for a few days and click picture showing that it is sealed then will allow its reopening in week of fortnight. I do not want to pay any bribe to Shri Vijay Maggoo and Shri P.K.Jha, as such you are requested to take necessary legal action against them.

Pl verify and report

9/11/2024

Insp (Bhupender. S)

Yours faithfully

(Karan Gupta)

Mo.- 9873101515

VERIFICATION MEMO IN CO-78/2024 of CBI ACB DELHI dated 04.11.2024

As per the direction of SP, ACB, CBI, Delhi to verify the content of complaint dated 04/11/2024 made by Sh. Karan Gupta S/o Sh. Rajinder Kumar Gupta R/o The Amaryllis, Gate no. 3, Tower 9A-605, Karol Bagh, New Delhi, in the presence of Independent Witness Sh. Jagmohan Singh, Junior Assistant, Food & Supply Department, GNCTD Delhi was secured in CBI, ACB, Delhi office through Duty Officer. The complainant was introduced to the above said independent witness and vice-versa. The CBI team consisting of the VO Sh. Bhupender Singh Yadav, Inspector, CBI, ACB, Delhi assisted by Sh. Naveen Kumar, SI, CBI, ACB, Delhi, the above said complainant and the independent witness assembled at around 05:00 PM on 04/11/2024. The purpose of the assembly was explained to the independent witness and other team members. The one page hand written complaint in English dated 04/11/2024 was read over, shown and explained to the independent witness.

It is mentioned in the complaint that complainant has two shops namely M/s Ministry of cakes (Proprietor Mrs. Priya Varshney W/o Sh. Karan Gupta) and M/s Shree Sanwariya Sweets (Proprietor Sh. Karan Gupta) situated at 8756-57, Multani Dhanda, Paharganj, Delhi-110055 which are lying in sealed condition. The said shops were sealed by DUSIB on 07.07.2023 for unauthorized construction. It was alleged in the complaint that Sh. Vijay Maggo, Legal Officer, DUSIB, GNCTD in connivance with Sh. P.K Jha, Principal Director, DUSIB, GNCTD has demanded illegal gratification to the tune of Rs. 40 Lakhs. It was also alleged in the complaint that on 01.11.2024 Sh. Karan Gupta (Complainant) met with Sh. Vijay Maggo, Legal Officer, DUSIB when Sh. Vijay Maggo demanded Rs. 40 lakhs to de-seal both the abovementioned shops. Sh. Vijay Maggo gave assurance to the complainant that if he (complainant) provides the demanded bribe amount of Rs. 40 Lakhs to him (Sh. Vijay Maggo) then he can run both the shops without any problem. However, it is also mentioned in the complaint that Sh. Vijay Maggo also told him that he will not provide any official document for de-sealing of both the shops but, in case of any official checking for unauthorized construction or any complaint regarding both the shops he will favor the complainant Sh. Karan Gupta by sealing both the shops temporarily and assured him that he will allow the complainant to reopen both his shops after a week or so.

[Signature]
04/11/2024

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04/11/24

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04/11/24

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04/11/2024

Since the complainant does not want to pay bribe money of Rs. 40 Lakhs to Sh. Vijay Maggo, Legal Officer, DUSIB, GNCTD and Sh. P.K Jha, Principal Director, DUSIB, GNCTD, hence, he has submitted the said complaint to SP, CBI, ACB, Delhi for taking legal action against Sh. Vijay Maggo and Sh. P.K Jha (Suspect Officers), both officials of DUSIB, GNCTD, New Delhi.

In order to verify the allegations, a Sony make Digital Voice Recorder (DVR) & a sealed packed micro SD card make Simmtronics 16 GB memory Card were arranged. The functioning of the DVR was explained to all the persons. After ensuring the blankness of the DVR, the said micro SD card was taken out of its sealed packing and was inserted in the DVR in the presence of independent witness. The DVR was set so as the recorded conversation get directly stored in the micro SD card. After ensuring the blankness of the memory card, the introductory voice of the above said independent witness was recorded in the said memory card through DVR.

Thereafter, in order to verify the allegation made in the complaint, the CBI team left the CBI Office in the official vehicle at about 06:50 PM for Priya Enclave, Kadkadooma, Delhi. In order to avoid any suspicion, complainant was directed to reach the designated spot on his scooty. We reached at Puri Bakery, Priya Enclave, Kadkadooma, Delhi at around 07:30 PM.

After giving necessary briefing, at 07:41 PM it was decided to make a whatsapp call to suspect officer Sh. Vijay Maggo on his mobile number 9560596074 from complainant's mobile phone number 9873101515 on speaker mode in presence of independent witness. On the said call complainant asked the suspect officer regarding meeting him, on which the suspect officer said that he would meet him near Sehgal Bakery. The conversation held between the complainant and the suspect was recorded in the DVR.

Thereafter, it was decided to send the complainant to meet the above said SO and have a conversation with him to ascertain the motive and demand of bribe. The complainant informed that the SO may not discuss the matter properly if someone else is present with him. Therefore the above said independent witness was directed to

1. *[Signature]*
4/11/24

[Signature]
K. Singh
04/11/24

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[Signature]
04/11/24

[Signature]
04/11/24

follow the complainant at a safer distance to avoid any suspicion and try to see the person with whom the complainant would converse and try to overhear the conversation as far as practically possible. Thereafter, the DVR was kept in the right front pocket of jeans of the complainant in recording and hold mode. Afterwards, the complainant was sent to meet Sh. Vijay Maggo at 07.42 PM and the independent witness was directed to follow him.

Thereafter, at about 08:02 PM the complainant and independent witness came back to the vehicle as directed before. After reaching to the vehicle, The DVR was taken from the complainant by Sh. Naveen Kumar, SI in presence of independent witness and was put on off mode from the recording mode. Thereafter the complainant was directed to narrate the incidents upon which he said that he and Sh. Vijay Maggo discussed about the de-sealing of his abovementioned shops and Vijay Maggo assured him that once he (complainant) delivers the bribe amount of Rs. 20 Lakhs both his shops will be opened and he can run his business smoothly at both the shops. Sh. Vijay Maggo encouraged the complainant to give bribe amount to him regardless of the risk involved. Sh. Vijay Maggo also referred his earlier conversation with the complainant where he (Sh. Vijay Maggo) accentuated on the fact that if he (Complainant) had given the bribe of Rs. 20 lacs to him than this work would have done much before and he would have not let Sh. P.K Jha to process and remand back the complaint regarding the unauthorized construction of his shops. Further, Sh. Vijay Maggo told him that he would manage Sh. Jha in Rs. 20 lacs and also directed him to involve one Sh. Satish. Vijay Maggo told him that bribe amount has to be given to other officers also and Sh. Satish would tell the final amount for them. Vijay Maggo further informed him to arrange the bribe amount and finish the work. Complainant further informed that Sh. Satish is a private person.

The independent witness was also asked about the incidence, on which he stated that he saw the complainant meeting and talking with one person near Sehgal Bakery. However, to avoid any suspicion, the independent witness could not go more closer to overhear the conversation.

1. Sh. Kumar
4/11/24

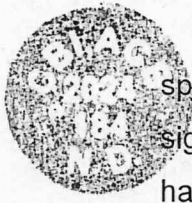
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04/11/24

h
04/11/24

Sh. Satish
04/11/24

Thereafter, CBI team along with the complainant and independent witness left the spot at around 08:15 PM and reached CBI office 08:40 PM. After reaching the office of CBI, ACB, Delhi, copy of the recorded conversations was prepared using a write blocker in the official laptop in presence of independent witness. The said conversation was heard and a rough transcription was prepared which revealed demand of bribe of Rs. 20 lacs on part of Sh. Vijay Maggo from complainant for allowing him to run his sealed shops. The said conversations also revealed that Vijay Maggo directed complainant to finalize the bribe amount from Sh. Satish.

Thereafter, the Memory Card was then kept in its plastic cover. Then the plastic cover was kept in its paper cover which was signed by Sh. Bhupender Singh Yadav, PI, VO, Independent witness and the complainant and marked as "Q-1 in CO-78/2024". Thereafter a new CBI brass seal was arranged from office. Then the paper cover containing the memory card was kept in an envelope and sealed with CBI Seal in the presence of Independent Witness. The brown envelope was signed by Sh. Bhupender Singh Yadav, VO, Independent witness and the complainant. The envelope was also marked as "Q-1 in CO- 78/2024" and taken in police possession vide this memo.



The specimen seal impression in ink has been taken on verification memo. The specimen seal impression in ink and lac was also taken on plain papers under the signature of independent witness and the verification officer. The seal and the DVR were handed over to the independent witness with direction to produce both the items on tomorrow i.e 05.11.2024.

In view of the above, it is revealed that Sh. Vijahy Maggo, Legal Officer, DUSIB, GNCTD has demanded illegal gratification of Rs. 20 lacs from the complainant Sh. Karan for allowing him to run his sealed shops. He further directed complainant to meet Sh. Satish and discuss the bribe amount. He emphasized that without involvement of Satish the work would not be done. However, the verification in respect of demand by Sh. Satish is required and same would be conducted tomorrow.

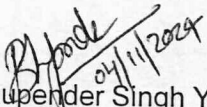
1. Lilav
4/11/24

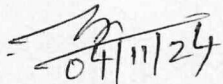
K. Upd.
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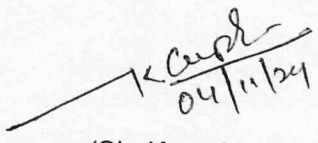
Bhupender
04/11/2024

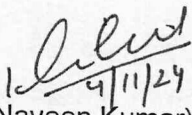
to
04/11/24

The verification memo was prepared in CBI office. The proceedings of this memo concluded at about 09:30 PM. This memo is being signed by the verification team including independent witness in token of its correctness.

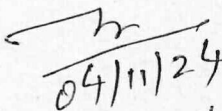

(Sh. Bhupender Singh Yadav)
Inspector of Police
CBI/ACB/Delhi


(Jag Mohan)
Independent Witness


(Sh. Karan)
Complainant


(Naveen Kumar)
Sub-Inspector of Police
CBI/ACB/Delhi

 DVR and CBI Brans seal received.


(Jagmohan Singh)

FURTHER VERIFICATION REPORT IN CO-78/2024 DATED:05.11.2024

In furtherance of verification of complaint dated 04/11/2024 submitted by Sh. Karan Gupta S/o Sh. Rajinder Kumar Gupta to verify the role of Sh. Satish, CBI team members namely Sh. Bhupender Singh Yadav, Inspector of Police, CBI, ACB, Delhi and Sh. Naveen Kumar, Sub-Inspector of Police, CBI, ACB, Delhi along with independent witness Sh. Jagmohan Singh, Junior Assistant, Food & Supply Department, GNCTD Delhi and complainant Sh. Karan Gupta again assembled at around 02:00 PM on 05/11/2024 at CBI, ACB, Delhi.

In order to verify the allegations, Digital Voice Recorder (DVR) which was produced by independent witness & a sealed packed micro SD card make Simmtronics 16 GB memory Card was arranged from office. After ensuring the blankness of the DVR, the said micro SD card was taken out of its sealed packing and was inserted in the DVR in the presence of independent witness. The DVR was set so as the recorded conversation get directly stored in the micro SD card. After ensuring the blankness of the memory card, the introductory voice of the above said independent witness was recorded in the said memory card through DVR.

Thereafter, in order to verify the role of Sh. Satish, the CBI team left the CBI Office in the official vehicle at about 05:15 PM for Paharganj, Delhi. In order to avoid any suspicion, complainant was directed to reach the designated spot on his scooty. The CBI team reached at Room no. 2, Aman Guest House, D.B.Gupta Road, Paharganj Delhi at around 06:30 PM. Complainant informed that his father has already spoken to Sh. Satish and he stated that he would meet in one hour.

After giving necessary briefing, at 06:58 PM it was decided to make a call to suspect Sh. Satish on his mobile number 9015910159 from complainant's mobile phone number 9873101515 on speaker mode in presence of independent witness. On the said call father of complainant, Sh. Rajinder Kumar Gupta asked Sh Satish regarding meeting him, on which, Satish said that he would meet him near Ramdev (Patanjali Store). The conversation held between the complainant and the suspect was recorded in the DVR.

1. Jilvi
5/11/24

K. Kumar
05/11/24

Bhupender
05/11/24

Naveen
05/11/24

Thereafter, it was decided to send the complainant along with his father to meet the above said suspect and have a conversation with him to ascertain the motive and demand of bribe. The complainant informed that the suspect Sh. Satish may not discuss the matter properly if someone else is present with him. Therefore the above said independent witness was directed to follow the complainant at a safer distance to avoid any suspicion and try to see the person with whom the complainant would converse and try to overhear the conversation as far as practically possible. Thereafter, the DVR was kept in the right front pocket of jeans of the complainant in recording and hold mode. Afterwards, the complainant and his father were sent to meet Sh. Satish at 06.59 PM and the independent witness was directed to follow them.

Thereafter, at about 07:25 PM the complainant and independent witness came back to Room no. 2, Aman Guest House as directed before. After reaching, The DVR was taken back from the complainant by Sh. Naveen Kumar, SI in presence of independent witness and was put on off mode from the recording mode. Thereafter the complainant was directed to narrate the incidents upon which he said that Sh. Satish suggested the complainant and his father to meet Sh. Vijay Maggo again to settle the final amount of bribe. He told them that he would also come along with them to meet Sh. Vijay Maggo at 09:00 pm near Sehgal Pastry Shop.

Accordingly, it was decided to send the complainant and his father along with Satish to meet Sh. Vijay Maggo. Complainant further informed that his father would come with Satish and he would come on his scooter to avoid suspicion by Satish. He was allowed to do so. CBI team including independent witnesses left Aman Guest House at around 07:50 PM and travelled in official car. The complainant travelled on his scooty and his father along with Satish travelled on separate scooty.

CBI team reached near Sehgal Pastry Shop at about 08:50 PM and parked the vehicle at safe distance. Complainant also reached near the vehicle and informed that his father and Satish has also reached near Sehgal pastry Shop. He was given DVR in recording and hold mode in presence of independent witness at about 08:54 PM. He went to meet Vijay Maggo. Independent witness was also directed to discreetly see and observe the activities of complainant. Accordingly, he left and went towards Sehgal Pastry Shop.

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K. Singh
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B. Singh
05/11/2024

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At around, 09:28 PM complainant and independent witness returned to vehicle and the DVR was taken back by SI Naveen Kumar. The same was switched off.

The complainant was asked to narrate the incidences, wherein he stated that he along with his father and Satish met Vijay Maggo near Sehgal Pastry Shop wherein they discussed the matter in detail. Sh. Vijay Maggo and Sh. Satish demanded a bribe of Rs. 40 lacs from complainant in total. He further told the complainant that an amount of Rs. 20 lacs out of Rs. 40 lacs is for Sh. P K Jha and remaining amount is for Sh. K P Singh, Executive Engineer, Sh. Tarun Gaur and others. Sh. Vijay Maggo further told the complainant that they would also discuss with Sh. K P Singh regarding his share in bribe and unsealing of shops. He further told the complainant to pay the entire amount in single payment not in installments. He assured the complainant that he needs not to be worried for sealing of his shops. He can unseal his shops and run them smoothly. Sh. Satish and Sh. Vijay Maggo told the complainant that they would give him a forged document/order for showing it to MCD or Delhi police if they raise any objection, but not to give copy of it to anyone. They further directed complaint to give the demanded bribe amount day after tomorrow and they would get his shops unsealed.

The independent witness was asked to narrate the incidence on which he said he saw four persons having discussion near Sehgal Pastry Shop. He further stated that one person is same who met complainant yesterday at same spot. The another one is one who met complainant and his father near Patanjali Store today, before some time.

Thereafter, team left for CBI office and reached office at around 09:54 PM. The memory card was taken out from DVR and a copy of it was prepared with the help of Write blocker. The recordings were heard by all which corroborated the version of complainant.

The memory card was sealed in its original cover and marked as "Q-2 in CO-78/2024" the same was put in envelope. The envelope was also marked as "Q-2 in CO-78/2024". Independent witness, VO and complainant signed the said envelope and plastic cover of memory card. Specimen seal impressions of CBI seal used for sealing the memory card, were taken on separate sheets in ink and lakh.

1. Lili
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K. Singh
05/11/24

B. Singh
05/11/24

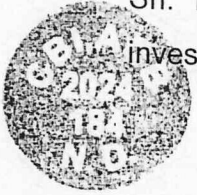
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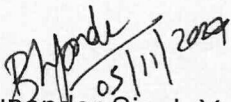
This further verification memorandum dated 05.11.2024 is prepared at CBI office using official laptop. Printout of same is being taken out and all the team members would put their signatures on it in token of its correctness.

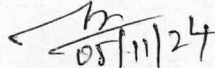
The CBI brass seal is handed over to independent witness under proper acknowledgement with the directions to keep it safe and produce the same as and when required by CBI or Court.

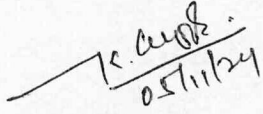
Verification revealed that Sh. Vijay Maggo and Sh. Satish demanded illegal gratification of Rs. 40 lacs from complainant for getting his shops unsealed and allow him to run them.

It is therefore recommended that a regular case may be registered against Sh. Vijay Maggo, Legal officer, DUSIB, GNCTD and Sh. Satish, private person and unknown others u/s 61(2) of BNS and Sec. 7, 7A of PC Act 1988 (as amended in 2018). The role of P K Jha, Principal Director, DUSIB, Sh. K. P. Singh, Executive Engineer, Sh. Tarun Gaur and other public servants may be looked into during the course of investigation.



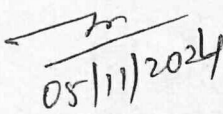

(Sh. Bhupender Singh Yadav)
Inspector of Police
CBI/ACB/Delhi


(Jag Mohan)
Independent Witness


(Sh. Karan)
Complainant


(Naveen Kumar)
Sub-Inspector of Police
CBI/ACB/Delhi

Received CBI Brass Seal.


(Jagmohan Singh)

Further verification report in CO-78/2024

Dated: 06.11.2024

As per the directions of SP CBI ACB New Delhi to conduct verification in respect of motive and general reputation of accused persons, I, discreetly verified from the sources that reputation of Sh. Vijay Maggo and Sh. Satish is not above board.

Further, it is revealed that the shops of Sh. Karan Gupta in Paharganj area are still in sealed condition. Thus, the motive of bribe is to allow the complainant for running his shops by getting them de-sealed with the help of Executive Engineer.

Submitted please.

Bhupender Singh Yadav
06/11/2024
Bhupender Singh Yadav
Inspector of Police

13. Action taken : Since the above information reveals commission of offence (s) u/s as mentioned at Item no. 2

(1) Registered the case and took up the investigation or

Regular Case is registered

(2) Directed (Name of IO): Rank: No. Took up for investigation

Shri Mahender Singh

Inspector, CBI, ACB, Delhi

(3) Refused investigation due to or

(4) Transferred to PS - District - on point of jurisdiction -

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

R.O.A.C.

14. Signature/Thumb Impression of the complainant/informant

Signature of Officer in-charge
Police Station:

Name: **V.M. Mittal**

Rank: **Supdt. of Police**
CBI:ACB: Delhi

15. Date and time of dispatch to the Court

Signature of recording Officer with date